

Brussels, June 20, 2023 – During the plenary session held on June 20, 2023, the European Data Protection Board adopted a template for complaint submission to facilitate individuals in filing complaints with supervisory authorities and the subsequent processing of complaints by data protection authorities in cross-border cases.

The Chair of the European Data Protection Board, Anu Talus, stated: “The template is one of the commitments that members of the European Data Protection Board undertook at the high-level meeting held in April 2022 in Vienna to strengthen cooperation in enforcement among data protection authorities. It will facilitate cross-border information exchange regarding complaints among data protection authorities and help data protection authorities save time and resolve cross-border cases more efficiently.”

The template takes into account existing differences between national laws and practices. Data protection authorities will use it on a voluntary basis and may adapt it to their national requirements. The template can be used for cases where a complaint is filed by an individual personally and for cases where a complaint is filed by someone else, namely a legal representative, a party acting on behalf of the individual, or a party acting on their own initiative.

Furthermore, the European Data Protection Board has developed a template for an acknowledgment of receipt, which aims to provide the complainant with general information about the next steps following the submission of the complaint and highlights the right to an effective legal remedy against a legally binding decision of the data protection authority.

After public consultation, the European Data Protection Board adopted the final version of recommendations on the approval request and on the elements and principles contained in binding corporate rules (BCR-C)*. These recommendations constitute an update of the existing reference document for BCR-C, which contains criteria for the approval of BCR-C, and merge it with the standard application form for BCR-C. The objectives of these recommendations are to:

1. Provide an updated standard application form for the approval of BCR-C;
2. Clarify the necessary content of binding corporate rules and provide additional explanations;
3. Distinguish between what must be included in binding corporate rules and what must be presented to the lead data protection authority in the application for binding corporate rules.

The recommendations are based on agreements reached by data protection authorities during the approval processes of specific requests for binding corporate rules since the beginning of the application of the General Data Protection Regulation. The recommendations provide additional guidance and aim to ensure equal conditions for all applicants for binding corporate rules.

Furthermore, the recommendations align existing guidelines with the requirements from the ruling of the Court in the Schrems II case.

From the moment of publication, the recommendations apply to all BCR-C holders. In practice, all holders of binding corporate rules-C and all new and ongoing applicants for BCR-C will have to align their BCR-C with the requirements set out in the recommendations, either during the application process or within the framework of the annual update for 2024, depending on their specific situation.

* BCR-C are a transfer tool that a group of companies or enterprises engaged in a common economic activity can use to transfer personal data outside the European Economic Area to controllers or processors within the same group. Binding corporate rules create enforceable rights and establish obligations to ensure a level of data protection that is essentially equivalent to that of the General Data Protection Regulation.